

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
TERRENCE DICKERSON,

Plaintiff,

-against-

THE CITY OF NEW YORK,
P.O.TYLER ANGELO (Shield Number 21443), and
P.O. ALEC SOLOMITO (Shield Number 3561),

Defendants.
-----X

Index No.:
Date Purchased:

Plaintiff designates
KINGS COUNTY
as the place of trial

The basis of venue is:
Place of Occurrence

SUMMONS

Plaintiff resides at:
790 Eldert Lane,
Brooklyn, NY 11208

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in this complaint.

Dated, New York, New York
November 18, 2020

Defendants addresses: See Rider

Yours etc.,

GAIR, GAIR, CONASON, RUBINOWITZ, BLOOM,
HERSHENHORN, STEIGMAN & MACKAUF
Attorneys for Plaintiff

Alex Bloom
80 Pine Street
New York, NY 10005
212-943-1090

Rider

The City of New York
100 Church Street
New York, NY 10007

P.O.TYLER ANGELO (Shield Number 21443),
c/o 75th Precinct
1000 Sutter Ave, Brooklyn, NY 11208

P.O. ALEC SOLOMITO (Shield Number 3561),
c/o 75th Precinct
1000 Sutter Ave, Brooklyn, NY 11208

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
TERRENCE DICKERSON,

Plaintiff,

-against-

THE CITY OF NEW YORK,
P.O.TYLER ANGELO (Shield Number 21443),
and P.O. ALEC SOLOMITO (Shield Number 3561),

Defendants.
-----X

VERIFIED COMPLAINT
Index #

Plaintiff, TERRENCE DICKERSON, by his attorneys, Gair, Gair, Conason, Rubinowitz,
Bloom, Hershenhorn, Steigman & Mackauf respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION PURSUANT TO 42 U.S.C. §1983

1. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK was a
municipal corporation duly organized existing under and by virtue of the laws of the State of
New York.

2. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK
operated, maintained, managed, supervised, and controlled a police department as part of and in
conjunction with its municipal functions.

3. Upon information and belief, at all times hereinafter mentioned, defendant P.O.
TYLER ANGELO was employed as a police officer by the Police Department of the City of
New York.

4. Upon information and belief, at all times relevant hereto, defendant P.O. TYLER ANGELO was assigned to the 75th precinct located at 1000 Sutter Ave, County of Kings, City and State of New York.

5. Upon information and belief, at all times hereinafter mentioned, defendant P.O. ALEC SOLOMITO was employed as a police officer by the Police Department of the City of New York.

6. Upon information and belief, at all times relevant hereto, defendant P.O. ALEC SOLOMITO was assigned to the 75th precinct located at 1000 Sutter Ave, County of Kings, City and State of New York.

7. A Notice of Claim setting forth the time when and where the plaintiff TERRENCE DICKERSON sustained his injuries was duly filed with defendant THE CITY OF NEW YORK on August 6, 2020, within 90 days of the cause of action herein accrued and before the commencement of that action; that the provisions of New York General Municipal Law §50(e) have been complied with, for more than 30 days have elapsed since the presentation of aforesaid claim and demand, and the defendant THE CITY OF NEW YORK has refused or neglected to make adjustment thereof; and this action has been commenced within 1 year and 90 days after the cause of action herein accrued.

8. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK had the duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels, the defendant officers in the protection of the Constitutional rights of the plaintiff under the Fourteenth Amendment to the United States Constitution.

9. In addition, the defendant THE CITY OF NEW YORK, had the duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels, the defendant officers to conform their conduct to a standard, established by law, for the protection of citizens, such as plaintiff, against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly, and/or negligently inflict injuries to citizens such as the plaintiff herein.

10. That on or about June 5, 2020, and prior thereto, in violation of 42 U.S.C. § 1983, defendants caused the plaintiff to be injured and damaged in failing to competently hire, train and retain police officers, including but not limited to the defendant officers to conform and conduct themselves to a statute established by law for the protection of citizens, such as plaintiff, against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly and/or negligently inflict injuries to citizens such the plaintiff herein.

11. On or about June 5, 2020, the plaintiff TERRENCE DICKERSON was lawfully and properly present in the vicinity of 740 Eldert Lane, County of Kings, City and State of New York.

12. On or about June 5, 2020, defendant P.O TYLER ANGELO was present and on duty in the vicinity of 740 Eldert Lane, County of Kings, City and State of New York, as part of his regular and official employment as a police officer for the defendant, THE CITY OF NEW YORK.

13. On or about June 5, 2020, defendant P.O ALEC SOLOMITO was present and on duty in the vicinity of 740 Eldert Lane, County of Kings, City and State of New York, as part of his regular and official employment as a police officer for the defendant, THE CITY OF NEW YORK.

14. Upon information and belief, on June 5, 2020 at approximately 8:30pm, the individual defendant police officers assaulted and battered, wrongfully and falsely arrested, detained, and confined the plaintiff TERRENCE DICKERSON without probable or just cause, grounds or provocation, in violation of plaintiff's civil rights pursuant to 42 U.S.C. §1983.

15. Following said assault, battery and arrest, the defendant officers wrongfully detained and arrested the plaintiff TERRENCE DICKERSON at the 75th Precinct and imprisoned him.

16. Following said arrest, defendant officers wrongfully and falsely charged the plaintiff TERRENCE DICKERSON, under the jurisdiction of the Criminal Court of the City of New York, County of Kings, Docket No.: 20619950, under the following provisions of the Penal Law of the State of New York:

PL 195.05 OBSTRUCTING GOVERNMENTAL ADMINISTRATION IN THE SECOND DEGREE

PL 205.30 RESISTING ARREST

PL 265.01(2) CRIMINAL POSSESSION OF A WEAPON IN THE FOURTH DEGREE

PL 110/120.00(1) ATTEMPTED ASSAULT IN THE THIRD DEGREE (DQO)

AC 3-108 VIOLATIONS

PL 240.20(1) DISORDERLY CONDUCT

PL 240.20(3) DISORDERLY CONDUCT

PL 240.20(6) DISORDERLY CONDUCT

PL 240.26(1) HARASSMENT IN THE SECOND DEGREE

17. The false arrest and imprisonment of the plaintiff TERRENCE DICKERSON was caused by all of the defendants, their servants, agents and/or employees, without warrant, authority of law, or any reasonable cause or belief that he was indeed guilty of the crimes with which he was charged.

18. As a result of the aforesaid arrest, plaintiff TERRENCE DICKERSON was forcibly hand-cuffed, detained, transported and treated as a common criminal and incarcerated and imprisoned at various facilities owned, operated, maintained and controlled by the defendant

THE CITY OF NEW YORK and thereby deprived of his rights, liberties and freedoms under color of State Law in violation of 42 U.S.C. §1983.

19. On or about June 5, 2020, in violation of the rights, privileges and immunities guaranteed to him under the Fourteenth Amendment to the United States Constitution and under color of State law, the defendant officers and each of them acting individually and in concert, in violation of 42 U.S.C. Section 1983, while on duty, detained the plaintiff, even though the defendants knew or should have known that the plaintiff was wholly innocent.

20. That all of the actions of the defendants, their agents, servants and/or employees were committed with the intention to cause bodily and mental injury to the plaintiff; to arrest, restrain and imprison the plaintiff without his consent; that the plaintiff was at all times conscious of his arrest, did not consent to the assault, battery, and false arrest, and the assault, false arrest and imprisonment were not otherwise privileged.

21. The assault, battery, arrest and imprisonment of the plaintiff were not justified by probable cause or other legal privilege and the defendants, their agents, servants and/or employees acting under the color of statute, ordinances, regulations, customs and usages of the State, City and County of New York, and under the authority of their office as police officers for defendant THE CITY OF NEW YORK, falsely charged the plaintiff with the aforementioned violations of the Penal Law, despite the fact that the defendants, acting in their official capacity as police officers, knew that such charges were false.

22. That the said prosecution and criminal charges and hearings instituted and procured by the defendants, their agents, servants and/or employees were unlawful and malicious and without any reasonable or probable cause whatsoever; that the commencement and/or continuation of the criminal proceedings by the defendants against the plaintiff was without

probable cause with actual malice and terminated in favor of the plaintiff and was a violation of Plaintiff's constitutional rights pursuant to 42 U.S.C. Section 1983.

23. Upon information and belief, the plaintiff was deprived of his constitutional rights as a result of the customs, patterns, and practices of the defendant THE CITY OF NEW YORK.

24. Further, although defendants knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant THE CITY OF NEW YORK has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

25. That the deprivation of plaintiff's constitutional rights was the result of THE CITY OF NEW YORK's custom and/or policy of using excessive force against innocents.

26. That the deprivation of plaintiff's constitutional rights was the result of the City of New York's THE CITY OF NEW YORK's custom and/or policy of wrongfully arresting minority individuals.

27. That the deprivation of plaintiff's constitutional rights was the result THE CITY OF NEW YORK's custom and/or policy of manufacturing evidence against individuals allegedly involved in assaults against police officers.

28. That the deprivation of plaintiff's constitutional rights was the result of THE CITY OF NEW YORK's custom and/or policy of assaulting, battering, falsely arresting and imprisoning individuals without probable cause or justification.

29. That the deprivation of plaintiff's constitutional rights was the result of THE CITY OF NEW YORK's custom and/or policy of failing to discipline officers for using excessive force.

30. That the deprivation of plaintiff's constitutional rights was the result of THE CITY OF NEW YORK's custom and/or policy of performing improper searches and seizures.

31. That the said customs and/or policies may be inferred from the existence of other similar civil rights actions that have been brought against THE CITY OF NEW YORK.

32. That by reason of the foregoing, the plaintiff TERRENCE DICKERSON, sustaining injuries to his head, limbs, and body, including, but not limited to, a fracture of the lumbar vertebra, a severe shock to his nervous system, and certain internal injuries, and has been caused to suffer physical pain and mental anguish as a result thereof, and, upon information and belief, some of these injuries are of a permanent and lasting nature; the plaintiff has been caused to abstain from his vocation, and has been caused to expend or become obligated to expend certain sums of money for medical attention and medicine.

33. That on or about June 5, 2020, in violation of the rights, privileges and immunities guaranteed to them under the Fourteenth Amendment to the United States Constitution and under the color of State law, the defendants acted individually and in concert causing the plaintiff to have been injured and damaged in an amount exceeding the jurisdictional limit of this Court, to be determined upon the trial of this action.

AS AND FOR A SECOND CAUSE OF ACTION
FALSE ARREST AND IMPRISONMENT

34. The plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the complaint marked and designated "1" through "33", inclusive, with the same force and effect as if more fully set forth herein at length.

35. On or about June 5, 2020, in the vicinity of 740 Eldert Lane, County of Kings, City and State of New York, the defendants, their agents, servants and/or employees wrongfully

and falsely arrested, imprisoned and detained plaintiff TERRENCE DICKERSON without any rights or grounds therefore, or any belief that he committed with offenses with which he was charged.

36. That on June 5, 2020, the defendants, despite knowing that the plaintiff was fully innocent of these charges, wrongfully accused and charged the plaintiff of the following violations of the New York Penal Law:

PL 195.05 OBSTRUCTING GOVERNMENTAL ADMINISTRATION IN THE SECOND DEGREE
PL 205.30 RESISTING ARREST
PL 265.01(2) CRIMINAL POSSESSION OF A WEAPON IN THE FOURTH DEGREE
PL 110/120.00(1) ATTEMPTED ASSAULT IN THE THIRD DEGREE (DQO)
AC 3-108 VIOLATIONS
PL 240.20(1) DISORDERLY CONDUCT
PL 240.20(3) DISORDERLY CONDUCT
PL 240.20(6) DISORDERLY CONDUCT
PL 240.26(1) HARASSMENT IN THE SECOND DEGREE

37. After charging the plaintiff, the defendants, their agents, servants and employees, wrongfully and unlawfully, against the plaintiff's wishes, without probable or reasonable cause, and charged that plaintiff violated the above provisions of the Penal Law, arrested and imprisoned the plaintiff and with full force of arms, they forcibly and violently seized, assaulted and laid hold of and compelled him to go with the said defendant police officers to be detained and imprisoned at the 75th Precinct, County of Kings, City and State of New York, and continuing to other places and times, including, but not limited to, Kings County Central Booking, located at 120 Schermerhorn Street, County of Kings, City and State of New York.

38. That at all times relevant hereto, the defendants owed a duty directly to plaintiff to conform their conduct to a standard established by law for the protection of plaintiff.

39. That at all times relevant hereto, the defendants failed to act, protect and safeguard the plaintiff.

40. That at all times relevant hereto, the defendants breached their duty owed directly to the plaintiff which endangered the plaintiff's physical safety.

41. That the defendants, their agents, servants and/or employees acting within the scope of their authority and within the scope of their employment, detained and imprisoned the plaintiff even though the defendants, their agents, servants and/or employees had the opportunity to know or should have known, that the matters hereinbefore alleged, wrongfully, unlawfully and without a sufficient charge having been made against the plaintiff, directed that the plaintiff be searched and placed in confinement at said locations.

42. That the plaintiff was wholly innocent of the said criminal charges and did not contribute in any way to the conduct of the defendants, their agents, servants and/or employees and were forced by the defendants to submit to the aforesaid arrest and imprisonment thereto entirely against his will.

43. That as a result of the aforesaid accusations made by the defendants, their agents, servants and/or employees acting under their employment and within the scope of their authority, made falsely, publicly, wickedly and maliciously, the plaintiff was compelled to appear before a Judge of the Criminal Court of the City of New York, County of Kings, to be arraigned.

44. That the defendants, their agents, servants and employees, as set forth on the aforementioned date, time and place, intended to confine the plaintiff; in that the plaintiff was conscious of the confinement; plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged.

45. That by reason of the false arrest, imprisonment and detention of the plaintiff, plaintiff was subjected to great indignities, humiliation and ridicule, charged and prosecuted with various crimes, and greatly injured in his credit and circumstances and was then and there prevented and hindered from performing and transacting their necessary affairs and business and he was caused to suffer much pain in both mind and body, the loss of employment and the loss of employment opportunities.

46. That by reason of the foregoing, the plaintiff TERRENCE DICKERSON, sustaining injuries to his head, limbs, and body, including, but not limited to, a fracture of the lumbar vertebra, a severe shock to his nervous system, and certain internal injuries, and has been caused to suffer physical pain and mental anguish as a result thereof, and, upon information and belief, some of these injuries are of a permanent and lasting nature; the plaintiff has been caused to abstain from his vocation, and has been caused to expend or become obligated to expend certain sums of money for medical attention and medicine.

AS AND FOR A THIRD CAUSE OF ACTION
MALICIOUS PROSECUTION

47. The plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the complaint marked and designated "1" through "46", inclusive, with the same force and effect as if more fully set forth herein at length.

48. That on or about June 5, 2020, at approximately 8:30 pm, in the vicinity of 740 Eldert Lane, County of Kings, City and State of New York, and at subsequent times therefore, including, but not limited to, 75th Precinct, County of Kings, City and State of New York, and Kings County Central Booking, located at 120 Schermerhorn Street, County of Kings, City and State of New York, the defendants, their agents, servants and employees maliciously prosecuted and detained plaintiff TERRENCE DICKERSON, without any just right or grounds therefore.

49. Although the plaintiff was and is wholly innocent of all charges, he was forced by the defendants to submit to court proceedings.

50. That on June 5, 2020, the defendants, despite knowing that the plaintiff was fully innocent of these charges, wrongfully accused and charged the plaintiff of the following violations of the New York Penal Law:

PL 195.05 OBSTRUCTING GOVERNMENTAL ADMINISTRATION IN THE SECOND DEGREE
PL 205.30 RESISTING ARREST
PL 265.01(2) CRIMINAL POSSESSION OF A WEAPON IN THE FOURTH DEGREE
PL 110/120.00(1) ATTEMPTED ASSAULT IN THE THIRD DEGREE (DQO)
AC 3-108 VIOLATIONS
PL 240.20(1) DISORDERLY CONDUCT
PL 240.20(3) DISORDERLY CONDUCT
PL 240.20(6) DISORDERLY CONDUCT
PL 240.26(1) HARASSMENT IN THE SECOND DEGREE

51. That the charges were dismissed by the aforementioned Criminal Court at the request of the Kings County District Attorney's Office.

52. That the said prosecution and criminal charges and hearings were instituted and procured by the defendants, their agents, servants and/or employees unlawfully and maliciously and without any reasonable or probable cause whatsoever; that the commencement and/or continuation of the criminal proceedings by the defendants against the plaintiff was without probable cause, with actual malice and was terminated in favor of the plaintiff.

53. That by reason of the aforesaid unlawful and malicious prosecution, the plaintiff was deprived of his liberty, was subjected to great indignity, humiliation, pain and great distress of mind and body and was held up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and vocation, was injured in his reputation in the community and the said plaintiff has been otherwise damaged.

54. As a result of the aforesaid malicious prosecution, the plaintiff, TERRENCE DICKERSON has been damaged in an amount exceeding the jurisdictional limit of this Court, to be determined upon the trial of this action.

AS AND FOR A FOURTH CAUSE OF ACTION,
ASSAULT AND BATTERY

55. The plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the complaint marked and designated "1" through "54", inclusive, with the same force and effect as if more fully set forth herein at length.

56. On or about June 5, 2020, in the vicinity of 740 Eldert Lane, County of Kings, City and State of New York, the plaintiff TERRENCE DICKERSON was assaulted and battered by the defendant's their agents, servants, and employees and/or others acting in concert with them.

57. The force used in the course of their arrests by the defendants was excessive, unnecessary, unwarranted, and violent.

58. As a result of the defendant officers' aforementioned assault and battery of the plaintiff TERRENCE DICKERSON, plaintiff has been damaged in an amount exceeding the jurisdictional limit of this Court to be determined in a trial of this action.

AS AND FOR A FIFTH CAUSE OF ACTION
COMMON LAW NEGLIGENCE

59. The plaintiff repeats, reiterates, and realleges each and every allegation contained in those paragraphs of the complaint marked and designated "1" through "58", inclusive, with the same force and effect as if more fully set forth herein at length.

60. Defendant THE CITY OF NEW YORK, their employees, agents, and/or servants were negligent in its operation, management, supervision and control of their Police

Department; in not providing adequate training of defendant police officers while at the Police Academy; in their supervision of defendant police officers while assigned to precincts; in failing to provide adequate supervision of defendant police officers during their training at the Police Academy; in negligently causing injury to plaintiff.

61. Defendant P.O TYLER ANGELO was negligent in failing to use reasonable care in the detainment, confinement, and prosecution of plaintiff TERRENCE DICKERSON on or about June 5, 2020.

62. Defendant P.O ALEC SOLOMITO was negligent in failing to use reasonable care in the detainment, confinement, and prosecution of plaintiff TERRENCE DICKERSON on or about June 5, 2020.

63. That by reason of the foregoing, the plaintiff TERRENCE DICKERSON, sustaining injuries to his head, limbs, and body, including, but not limited to, a fracture of the lumbar vertebra, a severe shock to his nervous system, and certain internal injuries, and has been caused to suffer physical pain and mental anguish as a result thereof, and, upon information and belief, some of these injuries are of a permanent and lasting nature; the plaintiff has been caused to abstain from his vocation, and has been caused to expend or become obligated to expend certain sums of money for medical attention and medicine.

WHEREFORE, plaintiff demand judgment against the defendants on each Cause of Action in amounts to be determined upon the trial of this action, together with interest and the costs and disbursements of this action.

Additionally, plaintiff demands in respect of all Causes of Action, the additional total sum of \$5,000,000.00 in punitive damages and attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
November 18, 2020

Yours etc.,

GAIR, GAIR, CONASON, RUBINOWITZ, BLOOM
HERSHENHORN, STEIGMAN & MACKAUF
Attorneys for Plaintiff

Alex R. Bloom

Alex R. Bloom
80 Pine Street
New York, NY 10005
(212) 943-1090

STATE OF NEW YORK)
 : s.s.
COUNTY OF NEW YORK)

ALEX R. BLOOM, the undersigned, an attorney admitted to practice in the Courts of New York State, states that he is an associate of the firm of GAIR, GAIR, CONASON, RUBINOWITZ, BLOOM, HERSHENHORN, STEIGMAN & MACKAUF attorneys for the plaintiff in the within action; that deponent has read the foregoing COMPLAINT and knows its contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes them to be true. Deponent further states that the reason this verification is made by your deponent and not by the plaintiff is that the plaintiff is not within the county where deponent maintains his office.

The grounds of deponent's belief as to all matters not stated upon deponent's own knowledge are consultations had with the plaintiff and investigation and data in deponent's possession. The undersigned affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
November 18, 2020

Alex R. Bloom
ALEX R BLOOM